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Submitter Information

Name: Anonymous Anonymous

General Comment

It is unfortunate that several different flavors of AI are conflated in the public mind. It is also unfortunate that the non-deterministic output of generative AI makes it difficult even for experts to evaluate it clear-headedly.

However numerous instances demonstrate that generative AI has serious structural flaws which should limit its use for any serious application.

First: generative AI "hallucinates"; that is, it swaps elements from its training data in its output. We have already seen court documents with plausible but fictitious citations, and a wild mushroom identification guide with errors that could cause fatalities. These are not soluble problems, they are intrinsic to the nature of generative AI.

Second: generative AI steals. Particularly when the corpus of training data is shallow, generative AI output infringes upon work - critically, potentially including confidential and sensitive work, if such is available for training. Queries like a request to render art in the style of a particular artist result in infringing output, but carefully crafted queries could also reveal personal identifying information or facilitate corporate espionage.

Third: Generative AI is subject to malicious manipulation of training data. Many of the most embarrassing public failures of gen AI can be traced to a joke site that was interpreted as factual. This can be exploited by websites designed to affect the weighting of training data. Reducing barriers to accessing training data will not help, and will very likely harm, in ways that may be difficult to anticipate in advance.